



Maritime &
Coastguard
Agency

Guidance

MGN 704 (M+F) Prevention of Oil Pollution: Prohibition on the Use, and Carriage for Use, of Heavy Fuel Oil (HFO) in Arctic Waters

Published 16 December 2024

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Summary

This Marine Guidance Note (MGN) provides guidance on an amendment to Annex I of the International Convention for the Prevention of Pollution from Ships (MARPOL), which prohibit ships from using, or carrying for use by the ship, heavy fuel oil when in Arctic waters.

This new prohibition takes effect in two stages. It took effect for certain vessels on 1st July 2024 and will apply to all vessels on 1st July 2029. The details are set out below.

This amendment to Annex I is implemented in the UK by way of amendments to the Merchant Shipping (Prevention of Oil Pollution) Regulations 2019 (SI 2019/42) (“the 2019 Regulations”). These amendments are made by the Merchant Shipping (Prevention of Oil Pollution) (Amendment) Regulations 2024 (SI 2024/1296).

1. Introduction

1.1 The International Convention for the Prevention of Pollution from Ships (MARPOL) contains international requirements for the prevention of ship-source pollution. MARPOL has six technical annexes, each of which makes provision for a specific type of pollution^[footnote 1].

1.2 Annex I of MARPOL contains mandatory requirements for the prevention and control of oil pollution from ships. Annex I also identifies specific geographic areas where, due to the sensitive nature of the marine environment, additional control measures are required for the protection of that environment from oil pollution. This includes specific measures which are already in place in Antarctic waters and, to a lesser extent, Arctic waters.

1.3 MARPOL Annex I is implemented in the UK primarily by the 2019 Regulations^[footnote 2].

1.4 Amendments to Annex I of MARPOL have been agreed in the International Maritime Organization (IMO) and are set out in Resolution MEPC.329(76)

(<https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MEPCDocuments/MEPC.329%2876%29.pdf>). These amendments extend, in a limited way, an existing prohibition on the carriage of heavy grade oils in Antarctic waters to the Arctic region.

1.5 This existing prohibition is contained in regulation 43 of Annex I and is implemented in the UK in regulation 28 of the 2019 Regulations. The prohibition extends to the use as fuel or ballast and the carriage in bulk as a cargo of certain heavy grade oils, tar, bitumen and their emulsions by ships operating in **Antarctic** waters. The amendment to Annex I will extend a similar, but more limited, prohibition to ships operating in **Arctic** waters. This is achieved by the addition of a new regulation 43A to Annex I. Subject to the coming into force dates, exemptions and waivers set out below, regulation 43A prohibits the use, and carriage for use, of heavy fuel oil (HFO) in ships when in Arctic waters.

1.6 The implementation of this measure in Arctic waters is in two stages. It took effect on 1st July 2024, except for vessels to which regulation 12A of Annex I and paragraph 1.2.1 of chapter 1 of part II-A of the Polar Code apply. That is because regulation 12A contains requirements for the protected location of fuel tanks and performance standards for accidental oil fuel outflow, and paragraph 1.2.1 of chapter 1 in part II-A of the Polar Code contains oil fuel tank separation requirements for certain types of ships designed for operation in polar waters (constructed on or after 1st January 2017 that have an aggregate oil fuel capacity of less than 600 m³). Waivers are also available for ships which fly the flag of an Arctic coastal state for voyages only within that coastal state's waters (the UK is not an Arctic coastal state). The prohibition will take full effect from 1st July 2029 when these exceptions and waivers will no longer apply.

1.7 HFO is defined in regulation 43.1.2 of Annex I as oils, other than crude oils, having a density at 15°C higher than 900 kg/m³ or a kinematic viscosity at 50°C higher than 180 mm²/s.

1.8 The criteria for exceptions and waivers are set out in section 2 below.

1.9 The full text of regulation 43A of MARPOL Annex I is set out in annex I of this MGN.

2. Implementation

2.1 MARPOL Annex I regulation 43A takes effect in two stages.

2.2 **Stage one:** from 1st July 2024, vessels to which MARPOL Annex I applies cannot use, or carry for use as fuel by the ship, HFO (as defined in 1.5 above) when in Arctic waters.

2.3 With the following exceptions to this:

1. Ships engaged in securing the safety of ships or in search and rescue operations;
2. Ships dedicated to oil spill preparedness and response;
3. Ships to which regulation 12A of Annex I applies;
4. Ships to which 1.2.1 of chapter 1 of part II-A of the Polar Code applies; and
5. Ships flying the flag of a Party to the Convention whose coastline borders on Arctic waters, are operating in waters subject to the sovereignty or jurisdiction of that Party and to which a temporary waiver is issued in accordance with regulation 43A.4.

2.4 **Stage two:** from 1st July 2029, MARPOL Annex I regulation 43A will take full effect. This means that, from 1st July 2029, ships to which MARPOL Annex I applies cannot use, or carry for use as fuel by the ship, HFO (as defined in 1.5 above) when in Arctic waters, with the following exceptions:

1. Ships engaged in securing the safety of ships or in search and rescue operations; and
2. Ships dedicated to oil spill preparedness and response.

2.5 From 1st July 2029 onwards, the exceptions and waivers listed in 2.3.3, 2.3.4 and 2.3.5 above will cease to apply.

2.6 2.3.3 above is for ships to which regulation 12A applies, and not ships that voluntarily comply with regulation 12A. Ships that voluntarily comply with regulation 12A are not eligible for the exception.

2.7 When prior operations have included the carriage or use of oils covered by this prohibition, the cleaning or flushing of tanks or pipelines is not required.

More information

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1. Annex II covers pollution by noxious liquid substances in bulk, Annex III covers harmful substances in packaged form, Annex IV covers sewage, Annex V covers garbage and Annex VI covers air pollution.
 2. Merchant Shipping (Prevention of Oil Pollution) Regulations 2019
(<https://www.legislation.gov.uk/ukxi/2019/42/made>)



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